

ENVIRONMENTAL IMPACT ASSESSMENT AND NGT

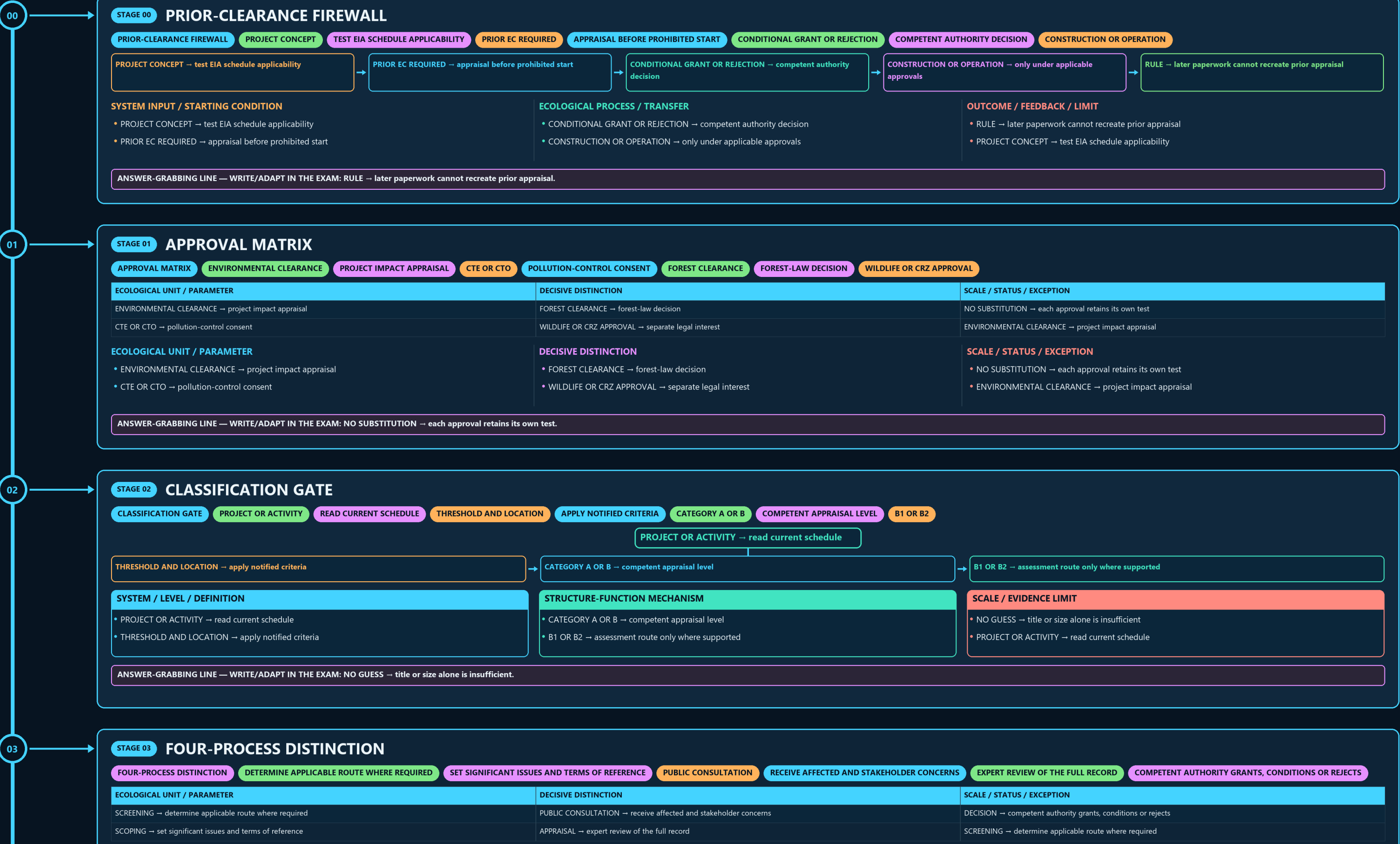
PRIOR-CLEARANCE FIREWALL → APPROVAL MATRIX → CLASSIFICATION GATE → FOUR-PROCESS DISTINCTION → EIA EVIDENCE CHAIN → CONSULTATION QUALITY GATE

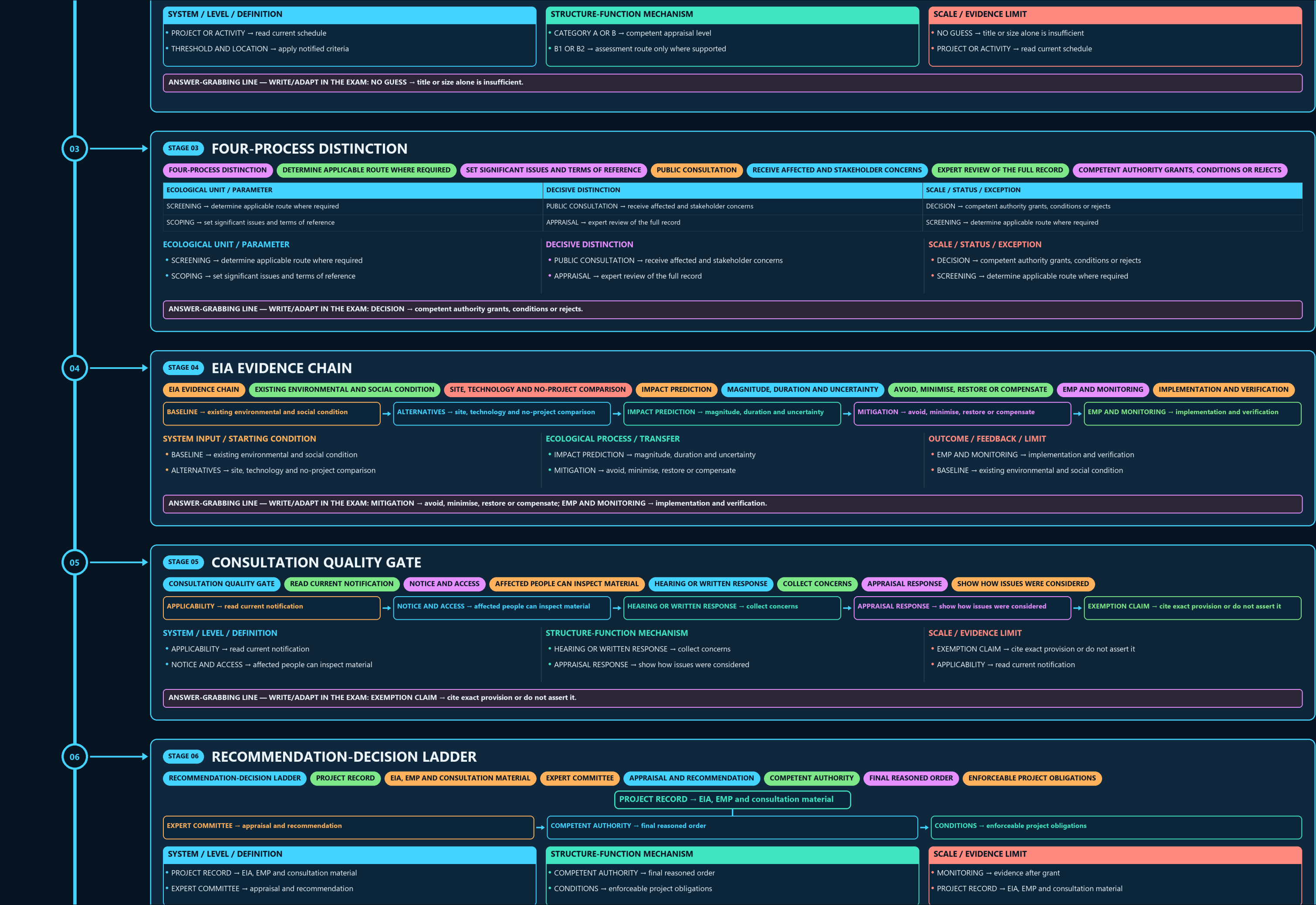
Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g1 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles





ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXEMPTION CLAIM → cite exact provision or do not assert it.

06

STAGE 06 RECOMMENDATION-DECISION LADDER

RECOMMENDATION-DECISION LADDER PROJECT RECORD EIA, EMP AND CONSULTATION MATERIAL EXPERT COMMITTEE APPRAISAL AND RECOMMENDATION COMPETENT AUTHORITY FINAL REASONED ORDER ENFORCEABLE PROJECT OBLIGATIONS

PROJECT RECORD → EIA, EMP and consultation material

EXPERT COMMITTEE → appraisal and recommendation

COMPETENT AUTHORITY → final reasoned order

CONDITIONS → enforceable project obligations

SYSTEM / LEVEL / DEFINITION

- PROJECT RECORD → EIA, EMP and consultation material
- EXPERT COMMITTEE → appraisal and recommendation

STRUCTURE-FUNCTION MECHANISM

- COMPETENT AUTHORITY → final reasoned order
- CONDITIONS → enforceable project obligations

SCALE / EVIDENCE LIMIT

- MONITORING → evidence after grant
- PROJECT RECORD → EIA, EMP and consultation material

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PROJECT RECORD → EIA, EMP and consultation material.

07

STAGE 07 GRANT-TO-OUTCOME CHAIN

GRANT-TO-OUTCOME CHAIN CLEARANCE GRANTED LEGAL DECISION CONDITION LISTED REQUIRED SAFEGUARD ACTION IMPLEMENTED PHYSICAL COMPLIANCE MONITORING VERIFIED

SYSTEM / LEVEL / DEFINITION

- CLEARANCE GRANTED → legal decision
- CONDITION LISTED → required safeguard

STRUCTURE-FUNCTION MECHANISM

- ACTION IMPLEMENTED → physical compliance
- MONITORING VERIFIED → evidence stage

SCALE / EVIDENCE LIMIT

- OUTCOME → environmental result, separately assessed
- CLEARANCE GRANTED → legal decision

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MONITORING VERIFIED → evidence stage; OUTCOME → environmental result, separately assessed.

08

STAGE 08 NGT IDENTITY MAP

NGT IDENTITY MAP SPECIALISED STATUTORY TRIBUNAL CPCB OR SPCB POLLUTION-CONTROL REGULATOR EAC OR SEAC APPRAISAL COMMITTEE CLEARANCE AUTHORITY ADMINISTRATIVE DECISION-MAKER

ECOLOGICAL UNIT / PARAMETER

NGT → specialised statutory tribunal
CPCB OR SPCB → pollution-control regulator

DECISIVE DISTINCTION

EAC OR SEAC → appraisal committee
CLEARANCE AUTHORITY → administrative decision-maker

SCALE / STATUS / EXCEPTION

CONSTITUTIONAL COURT → writ and appellate constitutional role
NGT → specialised statutory tribunal

ECOLOGICAL UNIT / PARAMETER

- NGT → specialised statutory tribunal
- CPCB OR SPCB → pollution-control regulator

DECISIVE DISTINCTION

- EAC OR SEAC → appraisal committee
- CLEARANCE AUTHORITY → administrative decision-maker

SCALE / STATUS / EXCEPTION

- CONSTITUTIONAL COURT → writ and appellate constitutional role
- NGT → specialised statutory tribunal

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONSTITUTIONAL COURT → writ and appellate constitutional role.

09

STAGE 09 JURISDICTION FORK

JURISDICTION FORK SUBSTANTIAL ENVIRONMENTAL QUESTION TEST SCHEDULE I BOUNDARY ORIGINAL CASE CIVIL ENVIRONMENTAL DISPUTE UNDER THE ACT SPECIFIED ORDER AND APPEAL PROVISION WRIT ROUTE SEPARATE CONSTITUTIONAL REVIEW

SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary

ORIGINAL CASE → civil environmental dispute under the Act

APPEAL → specified order and appeal provision

WRIT ROUTE → separate constitutional review

SYSTEM / LEVEL / DEFINITION

- SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary
- ORIGINAL CASE → civil environmental dispute under the Act

STRUCTURE-FUNCTION MECHANISM

- APPEAL → specified order and appeal provision
- WRIT ROUTE → separate constitutional review

SCALE / EVIDENCE LIMIT

- NO LABEL-BASED JURISDICTION → statute controls
- SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ORIGINAL CASE → civil environmental dispute under the Act.

09

STAGE 09

JURISDICTION FORK

JURISDICTION FORK

SUBSTANTIAL ENVIRONMENTAL QUESTION

TEST SCHEDULE I BOUNDARY

ORIGINAL CASE

CIVIL ENVIRONMENTAL DISPUTE UNDER THE ACT

SPECIFIED ORDER AND APPEAL PROVISION

WRIT ROUTE

SEPARATE CONSTITUTIONAL REVIEW

SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary

ORIGINAL CASE → civil environmental dispute under the Act

APPEAL → specified order and appeal provision

WRIT ROUTE → separate constitutional review

SYSTEM / LEVEL / DEFINITION

• SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary

• ORIGINAL CASE → civil environmental dispute under the Act

STRUCTURE-FUNCTION MECHANISM

• APPEAL → specified order and appeal provision

• WRIT ROUTE → separate constitutional review

SCALE / EVIDENCE LIMIT

• NO LABEL-BASED JURISDICTION → statute controls

• SUBSTANTIAL ENVIRONMENTAL QUESTION → test Schedule I boundary

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ORIGINAL CASE → civil environmental dispute under the Act.

10

STAGE 10

REMEDY AND LIMITATION MATRIX

REMEDY AND LIMITATION MATRIX

RELIEF OR COMPENSATION

PERSON OR DAMAGE CLAIM

PROPERTY RESTITUTION

RESTORE AFFECTED PROPERTY

ENVIRONMENT RESTITUTION

REPAIR ENVIRONMENTAL HARM

REMEDY-SPECIFIC CLOCK AND EXTENSION

ECOLOGICAL UNIT / PARAMETER

RELIEF OR COMPENSATION → person or damage claim

PROPERTY RESTITUTION → restore affected property

DECISIVE DISTINCTION

ENVIRONMENT RESTITUTION → repair environmental harm

LIMITATION → remedy-specific clock and extension

SCALE / STATUS / EXCEPTION

PRINCIPLES → apply within jurisdiction and evidence

RELIEF OR COMPENSATION → person or damage claim

ECOLOGICAL UNIT / PARAMETER

• RELIEF OR COMPENSATION → person or damage claim

• PROPERTY RESTITUTION → restore affected property

DECISIVE DISTINCTION

• ENVIRONMENT RESTITUTION → repair environmental harm

• LIMITATION → remedy-specific clock and extension

SCALE / STATUS / EXCEPTION

• PRINCIPLES → apply within jurisdiction and evidence

• RELIEF OR COMPENSATION → person or damage claim

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RELIEF OR COMPENSATION → person or damage claim.

11

STAGE 11

INSTRUMENT AND ANSWER SPINE

INSTRUMENT AND ANSWER SPINE

APPLICABILITY, CATEGORY, STUDY AND CONSULTATION

APPRAISAL, REASONED ORDER AND DISTINCT APPROVALS

CONDITIONS, COMPLIANCE AND ENVIRONMENTAL OUTCOME

NGT JURISDICTION, APPEAL, RELIEF AND LIMITATION

DRAFT, NOTIFICATION, MEMORANDUM, JUDGMENT AND PYQ STATUS

PREVENT → applicability, category, study and consultation

DECIDE → appraisal, reasoned order and distinct approvals

MONITOR → conditions, compliance and environmental outcome

REMEDY → NGT jurisdiction, appeal, relief and limitation

AUDIT → draft, notification, memorandum, judgment and PYQ status

SYSTEM / LEVEL / DEFINITION

• PREVENT → applicability, category, study and consultation

• DECIDE → appraisal, reasoned order and distinct approvals

STRUCTURE-FUNCTION MECHANISM

• MONITOR → conditions, compliance and environmental outcome

• REMEDY → NGT jurisdiction, appeal, relief and limitation

SCALE / EVIDENCE LIMIT

• AUDIT → draft, notification, memorandum, judgment and PYQ status

• PREVENT → applicability, category, study and consultation

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: AUDIT → draft, notification, memorandum, judgment and PYQ status.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

PERIODIC PROPOSALS TO STREAMLINE OR REVISE THE EIA PROCESS

BALANCED FRAMING FOR MAINS

PRESENT THIS AS A GENUINE TRADE-OFF REQUIRING CAREFUL

COMPREHENSIVE, INDEPENDENTLY COMPILED NATIONAL DATA ON EIA CLEARANCE APPROVAL/

NGT CASE-DISPOSAL STATISTICS (PENDENCY, AVERAGE DISPOSAL TIME) ARE REPORTED

POST-FACTO (RETROSPECTIVE) ENVIRONMENTAL CLEARANCE HAS BEEN TREATED BY INDIAN

NGT'S ORIGINAL JURISDICTION COVERS SUBSTANTIAL QUESTIONS RELATING TO ENVIRONMENT

OPTIONAL ECOLOGICAL PROCESS DEPTH

• CAUTION: Periodic proposals to streamline or revise the EIA process (e.g., reducing timelines,

• CAUTION: Balanced framing for Mains: present this as a genuine trade-off requiring careful

• CAUTION: Comprehensive, independently compiled national data on EIA clearance approval/

• CAUTION: NGT case-disposal statistics (pendency, average disposal time) are reported

SCALE, PARAMETER OR STATUS LIMIT

• Post-facto (retrospective) environmental clearance has been treated by Indian courts and

• NGT's original jurisdiction covers substantial questions relating to environment arising

• Public consultation under the EIA process has faced documented implementation critiques

• NGT order implementation ultimately depends on executive/state-agency compliance

COMPARATIVE RESTORATION NUANCE

• NOT: Post-facto environmental clearance has been judicially endorsed as a routine, regular

• NOT: NGT has unlimited jurisdiction over every environment-related legal matter in India.

• NOT: Public-consultation critiques primarily concern the absence of any consultation

• NOT: NGT orders are self-executing and require no further executive action. - Implementation

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.